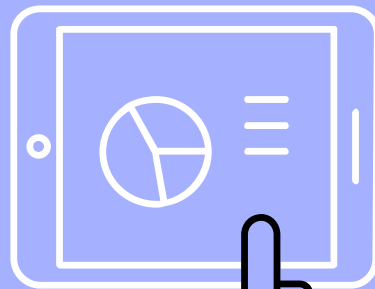
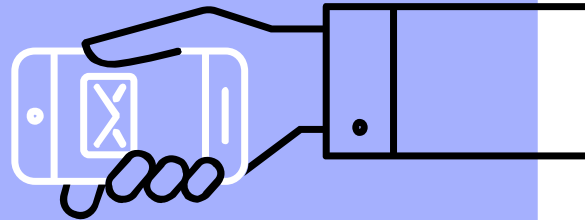
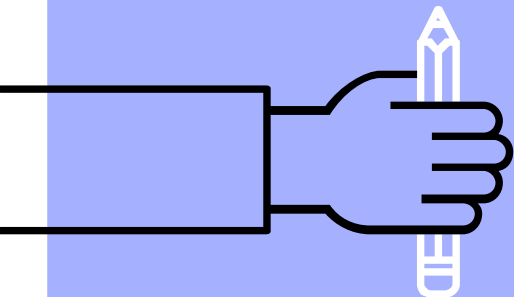
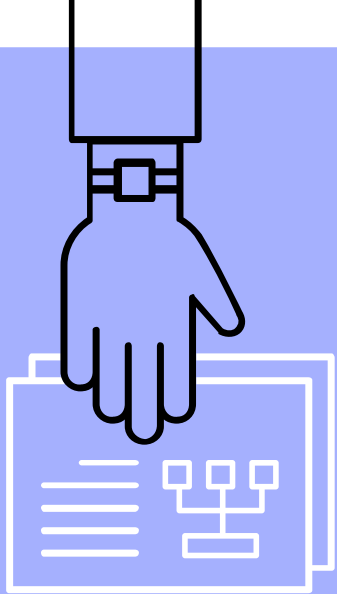


Net Neutrality

02/03/2023

Diogo Carvalho
#81 Bootcamp{LisBOA}

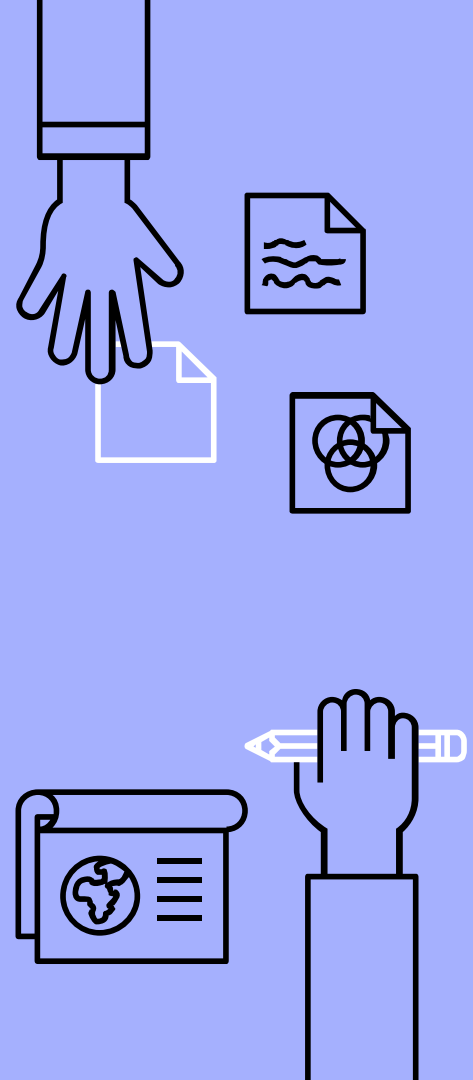




What is Net Neutrality?

Net neutrality is the concept of an open, **equal internet for everyone**, regardless of device, application or platform used and content consumed. Proponents of the idea believe all corporations, including internet service providers (ISPs), **should treat internet data and users equally**. They should not restrict access, slow down access speeds or block content for some users to serve their own interests.

ISPs should also not make special arrangements with any companies to give them improved network speeds or access.



Net Neutrality Origin?

Columbia Law School professor **Tim Wu** coined the term *net neutrality* in his June 2002 paper, "**A Proposal for Network Neutrality.**" In that paper and another published about a year later, "**Network Neutrality, Broadband Discrimination,**" professor Wu described how the growth of home broadband had created a new, difficult regulatory problem.

A Proposal for Network Neutrality

Tim Wu, Associate Professor of Law
University of Virginia Law School,
800 Massie Rd., Charlottesville, VA, 22903
timwu@virginia.edu / (202) 421-5445
June 2002

Summary

The growth of home broadband has created a new and difficult regulatory problem. Few dispute that broadband operators need the freedom to manage their networks to ensure maximum efficiency. Yet there is growing evidence that carriers can restrict the use of their broadband networks in ways that distort the market for internet applications, home networking equipment and other markets of public value.

The regulator is faced with a challenge: What principle can balance the legitimate interests of broadband carriers in administering their networks with the danger of harm to new application markets? And how can such a principle be translated into both clear legal guidelines and the practice of network design?

This proposal introduces the principle of *network neutrality* or *non-discrimination* as a tentative answer to these questions. As a general description, the proposal would strike a balance: it would forbid broadband operators, absent a showing of harm, from restricting what users do with their internet connection, while giving the operator general freedom to manage bandwidth consumption and other matters of local concern. The principle achieves this by developing "forbidden" and "permissible" grounds for discriminating among packets on its network. Generally speaking, the forbidden grounds are inter-network indicia, such as IP address or application type. Conversely, the allowable grounds for restriction are local indicia—particularly, bandwidth.

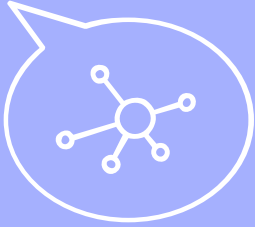
As the D.C. Circuit once said of the Bell system, the consumer has a right "reasonably to use his [connection] in ways which are privately beneficial without being publicly detrimental." This tentative proposal represents an effort to find that balance.

¹ Hush-A-Phone v. United States, 238 F.2d 266, 268 (D.C. Cir. 1956).

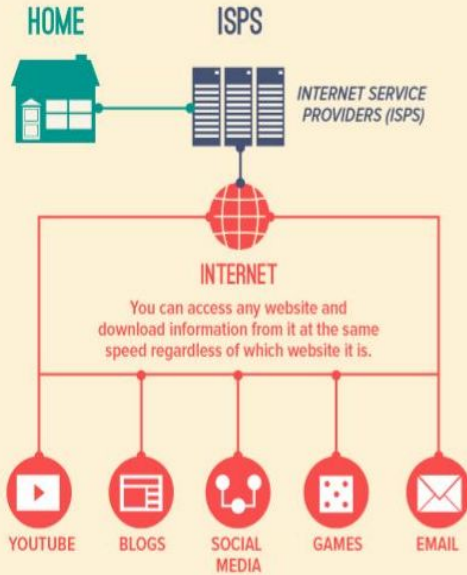
<http://www.timwu.org/OriginalNNProposal.pdf>

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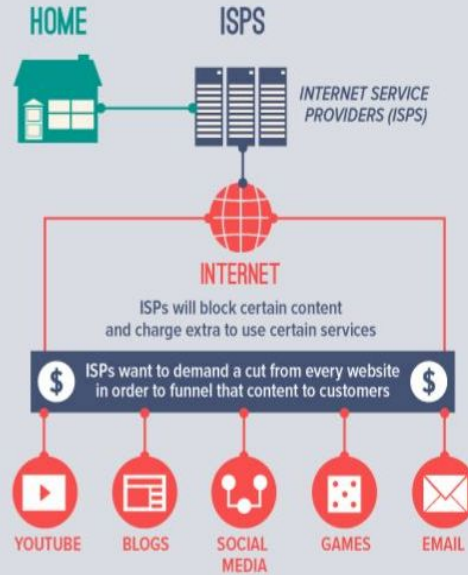
**Treat all data
EQUALLY**



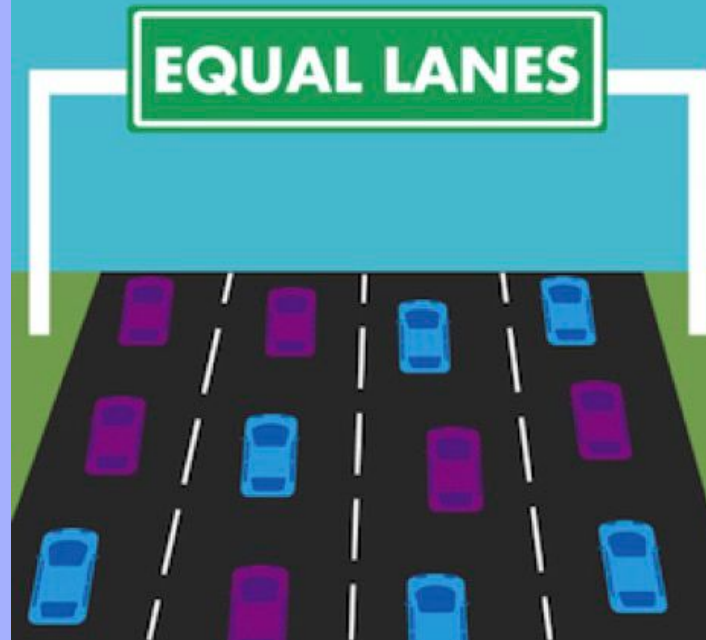
HOW THE INTERNET IS TODAY



HOW ISP'S WOULD LIKE THE INTERNET TO BE



ALL USERS DESERVE EQUAL ACCESS TO ONLINE INFORMATION REGARDLESS OF THE CARRIER OR INTERNET SERVICE PROVIDER (ISP) USED.



DEFAULT "FAST LANES" FOR GLOBAL ENTERPRISES RESULTS IN "SLOW LANES" FOR EVERY SMALL BUSINESS AND INDIVIDUAL INITIATIVE THAT CAN'T AFFORD TO PAY THE ELITE TOLLS.



PROS

- ❖ Net neutrality preserves free speech on the internet by prohibiting internet service providers from blocking content.
- ❖ Net neutrality protects consumers by preventing ISPs from speeding, slowing, or charging higher fees for select online content.
- ❖ Net neutrality promotes competition by providing a level playing field for new companies.

CONS

- ❖ Net neutrality regulations are unnecessary because the internet developed amazingly well in their absence.
- ❖ Net neutrality created burdensome and overreaching regulations to govern the internet.
- ❖ Net neutrality reduces investment in internet services resulting in less access and higher costs for consumers.

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ANACOM determina aos prestadores de serviços de acesso à Internet a cessação das ofertas que violem neutralidade da rede



Partilhar:    

Publicado em 21.11.2022

A ANACOM aprovou um sentido provável de decisão em que determina aos prestadores de serviços de acesso à Internet (PSAI) a cessação das ofertas *zero-rating* e similares que discriminem, com fundamento em questões de ordem comercial, entre o tráfego relativo a aplicações *zero-rated* e o restante tráfego. Esta cessação deve acontecer no prazo de 20 dias úteis após a data da decisão final, no caso de ofertas disponíveis para novas adesões; e de 90 dias úteis após a data da decisão final, no caso de contratos atualmente em execução.

Adicionalmente, os PSAI deverão, nesta sequência, enviar à ANACOM, no prazo de 90 dias úteis após a data da decisão final, informação detalhada sobre as alterações efetuadas nas respetivas ofertas para acomodar a decisão desta Autoridade, bem como a informação divulgada aos utilizadores finais.

No âmbito das alterações a realizar pelos PSAI, esta Autoridade recomenda que sejam salvaguardados os direitos e os interesses dos utilizadores, minimizando eventuais impactos decorrentes desse processo de alteração, disponibilizando maiores volumes de dados para acesso geral à Internet, no mínimo equivalentes ao volume total de dados que os utilizadores têm atualmente disponível.

MEO é a 1.ª operadora a terminar o zero rating no MOCHE a 1 de abril

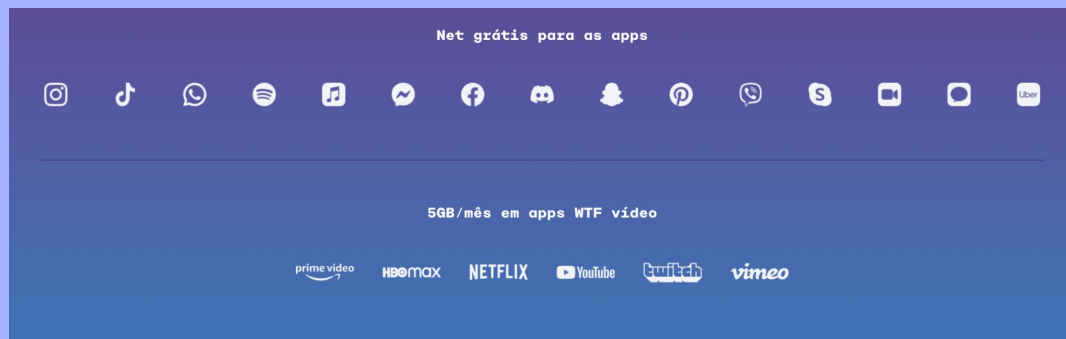
Rui Bacelar · 27 fevereiro 2023, 15:20

[Comentar](#)

O fim dos tarifários "**Zero Rating**" foi ordenado pela ANACOM no início de janeiro de 2023. Entretanto, as principais operadoras de Portugal permaneceram no silêncio, até ao momento. A primeira a terminar esta oferta será a **MEO** com o seu **MOCHE** a perder estas benesses a partir do próximo dia **1 de abril de 2023**.

Em causa está a transposição dos normativos comunitários que colocam um travão ao fornecimento de condições especiais de determinadas apps, serviços e domínios em detrimento dos demais. Por outras palavras, garantir que a "Net Neutrality", a neutralidade nas condições de acesso à Internet é uma realidade, também em Portugal.

MEO é a 1.ª operadora nacional a aplicar medidas impostas pela ANCOM



USERS SHOULD NOT FEAR THEIR ISPS



ISPS SHOULD FEAR THEIR USERS

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Thanks

